

**SUPERIOR COURT, STATE OF CALIFORNIA
COUNTY OF SANTA CLARA**

**Department 10
Honorable Frederick S. Chung**

Rachel Tien, Courtroom Clerk
191 North First Street, San Jose, CA 95113
Telephone: 408-882-2210

DATE: July 29, 2025 TIME: 9:00 A.M.

To contest the ruling, call (408) 808-6856 before 4:00 P.M.

Make sure to let the other side know before 4:00 P.M. that you plan to contest the ruling,
in accordance with California Rule of Court 3.1308(a)(1) and Local Rule 8.E.

LINE #	CASE #	CASE TITLE	RULING
LINE 11	25CV457709	Shirley J. Canel Soc et al. v. Road Safety, Inc. et al.	Petition for approval of compromise of minor's claim. <u>Parties to appear</u> , in accordance with CRC 7.952.
LINE 12	25CV457709	Shirley J. Canel Soc et al. v. Road Safety, Inc. et al.	Petition for approval of compromise of minor's claim. <u>Parties to appear</u> , in accordance with CRC 7.952.
LINE 13	25CV457709	Shirley J. Canel Soc et al. v. Road Safety, Inc. et al.	Petition for approval of compromise of minor's claim. <u>Parties to appear</u> , in accordance with CRC 7.952.
LINE 14	23CV413057	Rosaura de Navarro v. American Honda Motor Company, Inc.	Motion to compel further deposition testimony: <u>parties to appear</u> , per the court's July 23, 2025 order.

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Calendar Line 1**Case Name:** *Melody Pomele v. Evergreen School District***Case No.:** 24CV430032

On December 12, 2024, the court sustained defendant Evergreen School District's (the "District's") demurrer to the complaint on the ground that the first through sixth causes of action were barred by the statute of limitations. The court granted leave to amend, and plaintiff Melody Pomele filed a first amended complaint ("FAC") on January 2, 2025. The District has now demurred to the FAC on the same grounds, arguing that Pomele failed to cure the pleading defect. Pomele's opposition to the second demurrer was due on July 16, 2025, but the court has not received any opposition in the file. Based on the papers received, the court agrees with the District that Pomele's amendments to the FAC do not successfully plead around the statute of limitations.

The demurrer is SUSTAINED without leave to amend.

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